

motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiff’s failure to timely oppose Defendant’s Motions is a deemed to be her consent to the granting of all three motions.

Ruling

The Court grants the following motions and their respective sanctions:

1. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts As to Plaintiff Lynetta Westbrook, Individually, and Imposing Monetary Sanctions \$1,772.95
2. September 8, 2025 Motion for Orders Deeming Admitted Truth of Facts as to Plaintiff Lynetta Westbrook, as Successor in Interest to Alex Pollard (Deceased) and Imposing Monetary Sanctions (\$1,772.95)
3. September 8, 2025 Motion to Compel Production of Documents and Things (Set Two) against Plaintiff individually and for sanctions \$1,522.95
4. Plaintiff shall pay the foregoing sanctions to Defendant’s Counsel no later than ten (10) days from the date of this hearing.
5. The Court will execute the three proposed orders granting each motion lodged on September 16, 2026 and November 17, 2026. No appearance is required on February 25, 2026.

19. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY ORDERS: 1) DEEMING ADMITTED TRUTH OF FACTS AS TO PLAINTIFF LYNETTA WESTBROOK, AS SUCCESSOR IN INTEREST TO ALEX POLLARD, DECEASED AND 2) IMPOSING MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.

20. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND THINGS (SET TWO) AS AGAINST PLAINTIFF, INDIVIDUALLY, AND FOR MONETARY SANCTIONS**
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
See Line 18.